

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

20230930-DK-BUTTERFLY-1, INC. F/K/A BED BATH &
BEYOND INC., *Complainant*

DOCKET NO. 24-12

v.

EVERGREEN LINE JOINT SERVICE AGREEMENT (FMC
#011982) CONSISTING OF EVERGREEN MARINE CORP.
(TAIWAN) LTD.; EVERGREEN MARINE (UK) LIMITED; ITALIA
MARITTIMA SPA; EVERGREEN MARINE (HONG KONG) LTD.;
AND EVERGREEN MARINE (SINGAPORE) PTE. LTD.,
Respondents.

Served: August 7, 2025

ORDER OF: Alex M. CHINTELLA, *Administrative Law Judge.*

ORDER SETTING DISCOVERY CONFERENCE

On August 6, 2025, the parties contacted me pursuant to the instructions in the Scheduling Order [Dkt. 23] to alert me to a discovery dispute that they have not been able to resolve informally. Respondent intends to file a motion to compel and alleges that Complainant's interrogatory responses are deficient either because they reference spreadsheets or other business records that do not contain the requested information or because they reference documents that were not actually provided. Complainant counters that the spreadsheets and other business records do contain the requested information and that they have, in response to a July 28, 2025 letter from Respondent, provided supplemental responses in a July 30, 2025 letter.

Respondent's motion to compel must be filed no later than **August 12, 2025**, and Complainant's opposition by **August 19, 2025**. No extensions to these deadlines will be granted absent extraordinary circumstances. The motion and opposition must comply with the Initial Order ¶ 12 [Dkt. 9] as well as 46 C.F.R. § 502.150. Respondent's motion must include:

- the complete text of the interrogatories at issue along with Complainant's complete responses, including any supplemental responses, and the July 28, 2025 and July 30, 2025 letters referenced by Complainant; and
- the disputed spreadsheets (or other documents).

The spreadsheets must be provided in native format, and if any documents contain confidential material, they must be filed in accordance with the procedures for confidential filing in the Commission's rules and the Initial Order.

The parties are further **ORDERED** to appear for a discovery conference on **August 21, 2025, at 11:00 AM EDT**. The discovery conference will be held by videoconference (a link will be distributed to counsel prior to the conference).

SO ORDERED.

ALEX

CHINTELLA

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ALEX CHINTELLA

Date: 2025.08.07
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Alex M. Chintella
Administrative Law Judge